NON-DISCLOSURE AGREEMENT

Multi-Asset Portfolio Mandate Selection Process

Parties

This Non-Disclosure Agreement (the "**Agreement**") takes effect on the date of the last signature below and is made between:

1 **Gossmann & Cie.**, GmbH (Gesellschaft mit beschränkter Haftung), registered at Hohe Bleichen 8, 20345 Hamburg, Germany, with company number HRB 146626 (the "**Disclosing Party**"), represented by Arndt Gossmann, CEO and Managing Partner; and

2 **[Recipient legal name]**, [legal form], registered at [registered address], [trade register / company number] (the "**Recipient**"), represented by [name, title].

The Disclosing Party and the Recipient are each a "**Party**" and together the "**Parties**".

Background

A. The Disclosing Party is running, on behalf of one of its clients (the "**Client**"), a selection process (the "**Process**") to appoint an investment manager and a fund administrator for a multi-asset (balanced) portfolio mandate of approximately EUR 113 million (the "**Mandate**"). The Disclosing Party may disclose the identity of the Client at its discretion.

B. The Recipient has confirmed its interest in taking part in the Process for the role(s) of [investment management / fund administration / both].

C. To take part, the Recipient will receive confidential information about the Mandate, the Disclosing Party and its clients. The Parties agree to protect that information on the terms below.

1. Confidential Information

1.1 "**Confidential Information**" means all information, in any form, that the Disclosing Party, the Client or anyone acting on their behalf provides to the Recipient in connection with the Process, whether before or after this Agreement takes effect. It includes in particular:

- the RFI/RFP documentation and any clarifications or answers given during the Process;
- the size, structure, domicile, investment objective, benchmark, risk parameters, ESG requirements and fee arrangements of the Mandate;
- the identity, affairs, assets and investment strategy of the Disclosing Party, its clients and the beneficial owners of the Mandate;
- the identity of the other candidates, the evaluation criteria, and the progress and outcome of the Process; and
- all notes, analyses, summaries and other documents the Recipient prepares that contain or reflect any of the above.

1.2 The fact that the Process exists, that the Recipient has been invited to it, and the terms of this Agreement are also Confidential Information.

2. Obligations of the Recipient

2.1 The Recipient shall:

- use the Confidential Information only to evaluate and respond to the Process (the "**Purpose**");

- keep the Confidential Information strictly confidential and protect it with at least the same care it uses for its own confidential information, and never less than reasonable care;
- not copy or reproduce the Confidential Information except as reasonably needed for the Purpose; and
- promptly notify the Disclosing Party in writing if it becomes aware of any unauthorised use or disclosure.

2.2 The Recipient shall not contact the Client, the Disclosing Party's other clients, the beneficial owners of the Mandate, or other candidates about the Process without the Disclosing Party's prior written consent.

3. Permitted Disclosure

3.1 The Recipient may disclose Confidential Information to its directors, officers, employees and professional advisers (its "**Representatives**") who need it for the Purpose, provided they are bound by confidentiality obligations no less strict than this Agreement.

3.2 The Recipient may disclose Confidential Information to its affiliates, and to their directors, officers and employees, who need it for the Purpose, provided they are bound by confidentiality obligations no less strict than this Agreement.

3.3 The Recipient may not disclose Confidential Information to any other third party, including any sub-contractor, delegate or proposed service provider (such as an administrator, depositary or portfolio manager it proposes to work with), without the Disclosing Party's prior written consent.

3.4 The Recipient is responsible for any breach of this Agreement by its Representatives or by anyone to whom it discloses Confidential Information.

3.5 If the Recipient is required by law, regulation, court order or a competent authority to disclose Confidential Information, it may do so to the extent required. Where legally permitted, it shall first inform the Disclosing Party promptly in writing so the Disclosing Party can seek to limit the disclosure.

3.6 Clause 3.5 does not require prior notice for disclosures to a regulatory or supervisory authority made in the ordinary course of its supervision of the Recipient, where the request does not specifically target the Disclosing Party, the Client or the Mandate.

4. Exceptions

The obligations in this Agreement do not apply to information that the Recipient can show:

1 is or becomes publicly available other than through a breach of this Agreement;

2 was lawfully in its possession before receipt from the Disclosing Party or the Client, without any duty of confidentiality;

3 is lawfully received from a third party who is not under a duty of confidentiality; or

4 is independently developed by the Recipient without use of the Confidential Information.

5. Return and Destruction

5.1 On the Disclosing Party's written request, or when the Recipient withdraws from or is not selected in the Process, the Recipient shall within 10 business days return or destroy all Confidential Information and confirm this in writing.

5.2 The Recipient may keep copies that it must retain by law or regulation, or that are held in routine electronic back-ups that cannot reasonably be deleted. Those copies remain subject to this Agreement for as long as they are kept.

6. No Commitment

6.1 This Agreement does not oblige either Party to enter into any further agreement, and does not constitute an offer or a commitment by the Disclosing Party to award the Mandate or any appointment.

6.2 The Disclosing Party may change, suspend or end the Process at any time, and may deal with any other party, without giving reasons and without liability to the Recipient.

6.3 Each Party bears its own costs in connection with the Process and this Agreement.

6.4 If the Recipient is appointed, the confidentiality provisions of its appointment agreement replace this Agreement from the date that agreement takes effect. Information disclosed before that date remains protected by this Agreement unless the appointment agreement provides otherwise.

7. No Licence and No Warranty

7.1 All Confidential Information remains the property of the Disclosing Party or the Client, as applicable. No licence or other right in it is granted to the Recipient, except the limited right to use it for the Purpose.

7.2 The Confidential Information is provided "as is". The Disclosing Party gives no warranty as to its accuracy or completeness, except as may be agreed in any final appointment agreement.

8. Term

8.1 This Agreement takes effect on the date of the last signature below. The Recipient's obligations continue for two (2) years after the later of (a) that date and (b) the End of the Process, including after any return or destruction of Confidential Information.

8.2 The "**End of the Process**" is the date on which the Disclosing Party notifies the Recipient in writing of the outcome of the Process, or that the Process has been ended.

9. Candidate Information

9.1 The Disclosing Party shall keep confidential the non-public information the Recipient provides in its RFI/RFP response and otherwise during the Process, including its fee proposal ("**Candidate Information**").

9.2 The Disclosing Party may use Candidate Information only to evaluate the Recipient in the Process. It may share Candidate Information only with the Client and with the Disclosing Party's own directors, officers, employees and professional advisers who need it for that purpose and are bound by confidentiality obligations.

9.3 Clauses 3.4 (responsibility for others), 3.5 and 3.6 (legal and regulatory disclosure), 4 (Exceptions) and 8 (Term) apply to Candidate Information with the Parties' roles reversed.

9.4 After the End of the Process, the Disclosing Party shall, on the Recipient's written request, return or destroy the Candidate Information. It may keep copies that it must retain by law or regulation, that it needs as an internal record of the Process, or that are held in routine electronic back-ups. Those copies remain subject to this clause 9.

10. Remedies

Each Party acknowledges that damages alone may not be an adequate remedy for a breach of this Agreement. Each Party is entitled to seek injunctive relief or specific performance, in addition to any other remedy available at law.

11. Data Protection

Where Confidential Information or Candidate Information includes personal data, each Party shall process it only for the purposes of this Agreement and in accordance with the EU General Data Protection Regulation (GDPR) and other applicable data protection law. Neither Party shall transfer such personal data outside the European Economic Area unless an adequacy decision or other appropriate safeguard under the GDPR applies.

Each Party shall keep personal data out of the documents it exchanges in the Process wherever reasonably possible.

12. General

12.1 This Agreement is the entire agreement between the Parties on its subject and replaces any earlier understanding. It may only be amended in writing signed by both Parties.

12.2 The Recipient may not assign or transfer its rights or obligations under this Agreement without the Disclosing Party's prior written consent.

12.3 If any provision is found invalid or unenforceable, the remaining provisions continue in full force.

12.4 A failure or delay in exercising any right does not waive that right.

12.5 This Agreement may be signed in counterparts and by electronic signature. Each counterpart is an original, and together they form one agreement.

12.6 Notices under this Agreement must be in writing and sent by email, with a copy by post or courier, to: for the Disclosing Party, the email address from which this Agreement was sent to the Recipient and Hohe Bleichen 8, 20345 Hamburg, Germany; and for the Recipient, the email address from which the signed Agreement was returned and its registered address; or any other contact details a Party later notifies to the other in writing. A notice sent by email takes effect on the next business day after it is sent.

12.7 Where the Disclosing Party acts on behalf of the Client, it enters into this Agreement for itself and for the benefit of the Client, and the Client may rely on and enforce this Agreement directly.

13. Governing Law and Jurisdiction

This Agreement is governed by the laws of the Federal Republic of Germany. The courts of Hamburg, Germany have exclusive jurisdiction over any dispute arising out of or in connection with it.

Signatures

For and on behalf of **Gossmann & Cie. GmbH**	**For and on behalf of** **[Recipient legal name]**
Signature: _____	Signature: _____
Name: Arndt Gossmann	Name: _____
Title: CEO and Managing Partner	Title: _____
Date: _____	Date: _____